ANESU AKINO
versus
JOHANISE KASHITIGU
and
MESSENGER OF COURT

HIGH COURT OF ZIMBABWE
MUZENDA & SIZIBA JJ
MUTARE, 28 January & 16 February 2026

CIVIL APPEAL

C. Ndlovu, for the appellant
S. Chikamhi, for the 1st respondent
C. Maunga, for the 2nd respondent

SIZIBA J**:**

1. After hearing submissions from counsel in this matter on 28 January 2026, we ordered as follows:
   (a) The second respondent's purported cross appeal is not properly before the court and it is hereby struck off the roll.
   (b) The appellant's appeal is hereby upheld. The judgment of the court *a quo* is hereby set aside and substituted with the following:

   > "The plaintiff's claim against the first defendant is hereby dismissed with costs while the plaintiff's claim against the second defendant succeeds with costs."

2. We have been requested to provide reasons for the above order and that is what has necessitated this judgment. To begin with, the first respondent was the plaintiff in the court *a quo* who sued the appellant and the second respondent who were cited thereon as first and second defendants respectively. After the court *a quo* gave judgment in favour of the first respondent, there was no appeal noted by the first respondent who was the plaintiff in the court *a quo*. It is the appellant who filed his appeal and he sought no relief against the second respondent who was his co-defendant *a quo*. Under such circumstances, it was incompetent and improper for the second respondent to then

purport to file a cross appeal under this same matter. What he ought to have done was to file a separate appeal which could be heard simultaneously if good reason is found for consolidation of the matters. A cross appeal, as the name implies, can only be filed if one's opponent has filed an appeal. It cannot be filed against a co-defendant or co-respondent who has not sought any relief against a party. It is for this reason that we struck off the second respondent's purported cross appeal as it was not properly before us.

3. The background to this appeal is very simple. The first respondent sued the appellant and the second respondent for US$4 956 or the local currency equivalent and US$667 being interest accrued on the main debt and costs of suit. What triggered the plaintiff's action is that he accused the appellant and the second respondent of having caused him prejudice through their negligence in having delayed to release his money which related to a judgment debt which had been paid by the appellant until its value was reduced or depreciated by inflation. The first respondent had been owed a judgment debt of US$6000 by the appellant. When the appellant discharged his indebtedness by paying RTGS$7 400 000 on 15 May 2023 which was then the equivalent of US$6000 to the second respondent's bank account, the money was only paid out to the first respondent on 14 June 2023 when according to the first respondent it was equivalent to US$1 044 and thus prejudicing the first respondent in the sum which he claimed.

4. The court *a quo* found in favor of the first respondent. It found both the appellant and second respondent to have acted negligently and it ordered them to pay first respondent in the sum of US$4 956 or local currency equivalent jointly and severally one paying the other to be absolved. It found also that the claim for interest had not been proven and it did not grant it.

5. The parties had agreed on two issues for determination and those were whether the defendants *a quo* had been negligent in handling the money paid by the appellant and if so, the quantum of such loss.

6. The appellant's grounds of appeal were not elegantly drafted but we could relate to the fact that his main contention was that he should not have been found to have been negligent when he had discharged his indebtedness by paying his judgment debt into the second respondent's account and also communicating such fact to the second respondent. We found merit in the appellant's contention to this regard in light of the evidence on record as well as the findings made by the court *a quo*. The court *a quo* could not clearly spell out why it imputed negligence on the part of the appellant and we find no justification factually and legally for such a conclusion particularly in light of the following considerations:

   (a) After depositing the judgment debt to the second defendant's business bank account on 15 May 2023, the appellant wrote a letter on the following day to alert the second respondent. The second respondent did not reply such letter or advise the appellant that its business bank account had been garnished by NASSA. The second respondent kept telling the first respondent that the appellant was not co operating in settling the judgment debt. The court *a quo* accepted these facts or made findings of facts in this regard.

   (b) It was also common cause and indeed the court *a quo* accepted the fact that the appellant only came to know that the second respondent had had a challenge with its bank account on 20 June 2023 when the second respondent was deposing to a supplementary affidavit to oppose appellant's application for an interdict. It is common cause that the court granted an interdict in favour of the appellant to stop the respondents from pursuing him or executing judgment over a debt that he had fully discharged. The court *a quo* also related to this fact in its judgment and indeed the record of proceedings shows that this was the case.

   (c) It was also common cause and indeed the court *a quo* did relate to the fact that when appellant paid his judgment debt, the second respondent never questioned his calculations of the sum of money that was due or the exchange rate thereof. The court *a quo* also related to the fact that the second respondent did not provide any documentary proof that its bank account was under any garnishee by NASSA.

7. For the reasons articulated above, we therefore found it absurd for the court *a quo* to have imputed any negligence on the part of the appellant when he had properly discharged his indebtedness to the first respondent by depositing the sum due to the Messenger of Court's bank account and communicating such payment timeously to the Mesenger of Court. It is of no consequence whether such bank account was a business or trust account for purposes of this case nor is it of consequence where he got the account number from as long as such bank account was confirmed to belong to the Messenger of Court and also as long as he communicated that he had paid his judgment debt to such bank account timeously. The fault for the depreciation of that money cannot lie with the appellant. Negligence is measured by the objective standard of failure by one to act like a reasonable man in a given scenario. See *S* v *Matsetu* HH 84/13. There is no factual or legal basis to conclude that the appellant failed to act like a reasonable man in the circumstances of this case.

8. We accordingly find the court *a quo*'s finding that the appellant was negligent together with the second respondent to be a gross misdirection on facts. It is also irrational and it constitutes one of those rare instances where this appellant court should interfere with the factual findings by a court of first instance. See *Hama* v *National Railways of Zimbabwe* 1996 (1) ZLR 664 (S). These are therefore the reasons why we struck off the cross appeal and allowed the main appeal as highlighted in the order that we made after hearing the matter.

MUZENDA J agrees _____

Gonese & Ndlovu, appellant's legal practitioners
Chikamhi Mareanadzo, 1st respondent's legal practitioners
Maunga Maanda & Associates, 2nd respondent's legal practitioners